

International council for Human and animal rights

Motto : Peace , compassion , Justice

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Objective

“To uphold, protect, and enforce the rights and dignity of humans and animals through law, advocacy, research, and sustainable action at national and international levels.”

“To combat injustice, cruelty, and exploitation affecting humans, animals, and the environment through protection, prevention, legal action, and public awareness.”

“To advance universal human and animal rights and environmental justice through evidence-based advocacy, international cooperation, and sustainable development initiatives.”

Vision

“A just, compassionate, and sustainable world where the rights, dignity, and well-being of humans, animals, and the environment are universally respected and protected, fostering peaceful coexistence among all living beings.”

Alternative :

“A just, compassionate, and sustainable world where the rights, dignity, and well-being of humans, animals, and the environment are universally respected and protected, enabling peaceful and harmonious coexistence among all forms of life.”

Vision:

A world governed by dignity, justice, and compassion for all living beings.

Mission

“To promote and protect human, animal, and environmental rights through legal advocacy, research, education, policy engagement, and international collaboration, ensuring justice, accountability, and sustainable development for present and future generations.”

Mission:

To defend rights, prevent injustice, and drive systemic change through law, awareness, and global cooperation.

Governance structure

International Council for Human and Animal Rights (ICHAR) with:

- **Head Office: New Delhi**
- **Branch Offices: Chennai, Mumbai, Kolkata**

1. Apex Governance (Head Office – New Delhi)

A. Governing Council / Board of Directors

(Supreme policy-making body)

Composition (7–11 members ideal):

- Chairperson
- Vice-Chairperson
- Secretary-General
- Treasurer
- 4–7 Independent Directors (law, human rights, animal welfare, environment, finance, international relations)

Key Functions:

- Set vision, mission, long-term strategy
- Approve budgets, annual plans, policies
- Ensure legal compliance (Sec 8, FCRA, CSR-1, UN ECOSOC later)
- Appoint Executive Director & approve State Directors

B. Executive Secretariat (Delhi)

(Day-to-day national & international operations)

Headed by: Executive Director / Secretary-General

Core National Departments (Delhi):

- 1. Human Rights Division**
 - Women Rights Department
 - Child Rights Department
- 2. Animal Rights Division**
- 3. Environmental Rights Division**
- 4. Legal & Policy Affairs**
 - Litigation support

- Research & advocacy
- International law & UN liaison

5. International Relations & Partnerships

- UN ECOSOC
- Foreign NGOs
- Global chapters

6. Finance, Audit & Compliance

7. Administration & HR

8. Communications & Public Affairs

- Media
- Reports
- Campaigns

2. Regional / Branch Office Structure

Each branch operates **administratively independent but policy-controlled by Delhi HQ.**

A. Branch Office Leadership (Chennai / Mumbai / Kolkata)

State / Regional Director

- Reports directly to Executive Director (Delhi)

Supporting Roles:

- Deputy Director (Programs)
 - Legal Officer
 - Finance & Admin Officer
 - Outreach & Field Coordinator
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B. Functional Units at Branch Level

Each branch can have **scaled-down versions** of HQ departments:

1. Human Rights Unit

- Women Rights Cell
 - Child Rights Cell
 - 2. **Animal Rights Unit**
 - 3. **Environmental Rights Unit**
 - 4. **Legal Aid & Case Documentation Cell**
 - 5. **Research, Training & Awareness Unit**
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3. Reporting & Control Mechanism

Vertical Reporting

- Branch Units → State Director
- State Director → Executive Director (Delhi)
- Executive Director → Governing Council

Horizontal Coordination

- Branch Legal Units ↔ HQ Legal & Policy Division
 - Branch Program Units ↔ HQ Program Heads
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4. Advisory & Oversight Bodies (Optional but Powerful)

A. National Advisory Council

(Non-executive, credibility-boosting body)

- Retired judges
- Former civil servants
- International experts
- UN consultants

B. Ethics & Compliance Committee

- Ensures transparency
 - Handles complaints, conflicts of interest
 - Critical for UN & CSR credibility
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5. International Expansion Model (Future-Ready)

Once stable in India:

- **Country Chapters** (USA, Europe, etc.)
- Each country chapter:
 - Local Board
 - MoU with Delhi HQ
 - Policy alignment with ICHAR Constitution

What should be the work of a Council?

A **Council** is not just an implementing NGO—it is a **think–act–influence body**. Its strength lies in **policy influence, coordination, advocacy, and standards**, while also supporting ground action.

A. Core Functions of a Council

1. Policy Advocacy & Law Reform

- Study existing laws on **human rights, women, children, environment, and animals**
- Identify gaps, misuse, or non-implementation
- Submit:
 - Policy briefs
 - Draft amendments
 - Recommendations to governments, ministries, courts, UN bodies
- Intervene as:
 - Expert body
 - Amicus curiae (where permitted)
 - Advisory council to public institutions

👉 This suits your background in **law, governance, and international relations** very well.

2. Research, Documentation & Reports

- Prepare:

- Human rights violation reports
 - Animal cruelty & environmental crime documentation
 - Country/state-wise status reports
- Publish:
 - Annual “State of Rights” report
 - Thematic reports (women safety, child labour, wildlife crime)

These reports become your **credibility engine**.

3. Advisory & Capacity Building

- Train:
 - Police
 - Local authorities
 - NGOs
 - Corporate CSR teams
- Conduct:
 - Workshops
 - Legal literacy programs
 - Rights awareness campaigns

You become the **knowledge backbone**, not just an activist group.

4. Coordination & Accreditation

- Act as an umbrella body:
 - Accredite grassroots NGOs
 - Create ethical & operational standards
- Facilitate:
 - Collaboration between NGOs, governments, international agencies
- Maintain:
 - Databases of activists, lawyers, researchers

This is where a “Council” sounds powerful and authoritative.

5. Strategic Interventions (Selective Ground Action)

Not everything—but **high-impact cases**:

- Strategic litigation
 - Emergency response (extreme abuse cases)
 - Pilot projects that can be scaled by partners
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6. International Representation

- Participate in:
 - UN side events
 - Global conferences
 - International treaty consultations
 - Build:
 - MoUs with global councils and Local and International NGOs
 - Advocate transnationally (especially if you plan global expansion)
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2 How to raise funds to accomplish this work 💰

A council should **diversify funding**—never depend on one source.

A. Institutional & Grant Funding (Primary)

1. CSR Funding (India)

- Register for **CSR-1**
- Pitch to corporates for:
 - Legal awareness programs
 - Environmental protection
 - Women & child welfare
- Councils are attractive to CSR because:

- You offer **policy + impact**
 - You produce measurable reports
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2. International Grants(After 3 years of Incorporation)

From:

- UN agencies (UN Women, UNICEF, UNEP)
- EU human rights funds
- Foundations (Ford, Open Society, Gates, etc.)

💡 Councils with research & advocacy focus are **highly fundable**.

B. Membership & Subscription Model

3. Council Memberships

- Individual members (lawyers, activists, scholars)
- Institutional members (NGOs, universities, CSR arms)
- Annual fees with benefits:
 - Access to reports
 - Training
 - Policy forums
 - Recognition certificates

Steady income + legitimacy.

C. Knowledge-Based Revenue (Very Powerful)

4. Paid Trainings & Certifications

- Human rights compliance training
- Animal welfare legal compliance
- ESG & sustainability advisory
- Certificates endorsed by the Council

Corporates and institutions pay well for this.

5. Consultancy & Advisory

- Government advisory projects
- CSR impact assessments
- Policy drafting for institutions
- International compliance advisory

This makes the Council **self-sustaining**.

D. Public Support & Digital Fundraising

6. Crowdfunding

- Case-based fundraising (specific rescues, litigation)
 - Transparent storytelling
 - Use:
 - Social media
 - Website donation gateways
 - Monthly donor programs
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7. Events & Campaigns

- Conferences
 - Award ceremonies
 - Fundraising dinners
 - International days (Human Rights Day, Environment Day)
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E. Endowment & Long-Term Stability

8. Endowment Fund

- High-net-worth individuals
- Philanthropists
- Legacy donations

Interest funds your core operations long-term.

1. What does ICHAR actually do? (Core Functions)

ICHAR is **not merely a protest or awareness body**. It is a **rights-protection, policy-intervention, and institutional accountability organisation** operating at the intersection of **law, governance, ethics, and welfare**.

A. Rights Protection & Legal Intervention

ICHAR works to **prevent, document, and respond to rights violations** through:

- Legal aid facilitation and strategic litigation
- Complaint drafting and representation before authorities
- Monitoring compliance with national and international rights frameworks
- Supporting victims through procedural navigation (FIRs, PILs, representations)

Focus: Systemic correction, not just individual relief.

B. Documentation, Research & Reporting

ICHAR acts as a **fact-finding and evidence-building body**:

- Field investigations and case documentation
- Thematic reports (women, children, animals, environment)
- Shadow reports for UN mechanisms and statutory bodies
- Data-driven policy briefs and white papers

Focus: Creating credible records that compel action.

C. Policy Advocacy & Institutional Reform

ICHAR engages with:

- Ministries, statutory commissions, and local administrations
- Parliamentary committees and policy forums
- International human rights mechanisms (UN, treaty bodies)

Activities include:

- Drafting policy recommendations

- Submitting memoranda and advisory opinions
- Campaigning for legal and regulatory reform

Focus: Structural change over symbolic advocacy.

D. Capacity Building & Education

ICHAR strengthens rights ecosystems by:

- Training police, local officials, students, activists, and community leaders
- Rights literacy programs for vulnerable populations
- Workshops on animal welfare laws, child protection, women's rights, and environmental justice

Focus: Prevention through knowledge.

E. Emergency Response & Rapid Action

In cases of:

- Violence against women or children
- Mass animal cruelty
- Environmental damage
- Custodial abuse or institutional neglect

ICHAR coordinates:

- Legal response teams
- Media documentation
- Authority escalation
- On-ground partners

Focus: Speed, legality, and accountability.

2. Whom does ICHAR protect? (Target Audience)

ICHAR's protection framework is **rights-based, not charity-based**.

Primary Target Groups (Direct Beneficiaries)

1. Women

- Victims of domestic violence, sexual abuse, trafficking, workplace harassment
- Women denied access to justice, property, or dignity
- Survivors of institutional apathy or misuse of power

Legal basis: CEDAW, Indian Penal Code, POCSO (where relevant), constitutional rights

2. Children

- Victims of abuse, neglect, exploitation, child labour, trafficking
- Children in conflict with law or in institutional care
- Children affected by poverty, disasters, or displacement

Legal basis: CRC, JJ Act, POCSO Act

3. Animals (Voiceless Victims)

- Street animals subjected to cruelty or poisoning
- Wildlife affected by illegal trade or habitat destruction
- Animals in captivity, experimentation, transport, or slaughter suffering violations

Legal basis: Prevention of Cruelty to Animals Act, Wildlife Protection Act, international animal welfare norms

4. Environment-Affected Communities

- Communities impacted by pollution, deforestation, illegal mining
- Coastal, tribal, and rural populations facing ecological injustice
- Future generations whose rights are compromised

Legal basis: Environmental law, right to life (Article 21), sustainable development principles

Secondary Target Groups (Indirect Beneficiaries)

- Human rights defenders and whistle-blowers
- Grassroots activists and NGOs lacking legal backing

- Ethical public servants seeking institutional reform
 - Society at large, through strengthened rule of law
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3. What ICHAR is NOT

To avoid confusion, ICHAR is **not**:

- A political party or protest collective
- A religious or ideological body
- A charity limited to relief distribution
- A one-issue NGO

ICHAR is a **rights institution**.

4. One-Line Positioning Statement .

ICHAR exists to protect the voiceless, hold power accountable, and transform rights from paper promises into lived realities—for humans and animals alike.

Our logo



WOMEN & CHILD-CENTRIC HUMAN RIGHTS VIOLATIONS

Mapped to Bharatiya Nyaya Sanhita, 2023 (BNS)

(BNS replaces IPC; offences are largely retained with renumbering and clearer gender-protective language)

I. WOMEN'S HUMAN RIGHTS VIOLATIONS (BNS)

1. Sexual Violence & Bodily Integrity

Violation	BNS Provision	What it Covers
Rape	BNS §63	Sexual intercourse without consent
Aggravated rape (custodial, authority, pregnant woman, etc.)	BNS §64	Enhanced punishment
Gang rape	BNS §70	Collective sexual assault
Rape causing death or permanent vegetative state	BNS §66	Life imprisonment / death
Sexual assault (non-penetrative)	BNS §62	Physical sexual abuse
Sexual harassment	BNS §75	Unwelcome sexual acts
Stalking (physical & online)	BNS §78	Repeated surveillance / contact
Voyeurism	BNS §77	Watching/recording private acts

📌 *Human Right Violated:*

Right to dignity, bodily autonomy, privacy (Art. 21)

2. Domestic & Intimate Partner Violence

Violation	BNS Provision	Explanation
Cruelty by husband or relatives	BNS §85	Physical or mental cruelty
Dowry death	BNS §80	Death linked to dowry demands
Abetment of suicide (married women)	BNS §108	Coercion leading to suicide

(Civil remedies still lie under PWDVA, 2005)

3. Exploitation, Trafficking & Forced Practices

Violation	BNS Provision	Explanation
Human trafficking	BNS §143	Recruitment, transport, exploitation

Violation	BNS Provision	Explanation
Trafficking of women	BNS §144	Sexual or labour exploitation
Forced prostitution	BNS §145	Commercial sexual exploitation
Buying/selling women	BNS §146	Exploitative transactions

4. Harmful & Discriminatory Practices

Violation	BNS Provision	Explanation
Acid attack	BNS §124	Causing grievous harm
Attempted acid attack	BNS §125	Preventive criminalisation
Honour killing	BNS §101 + §103	Murder with aggravating intent
Criminal intimidation	BNS §351	Threats to silence women

II. CHILD RIGHTS VIOLATIONS (BNS)

1. Sexual Offences Against Children

(POCSO Act continues; BNS complements criminal liability)

Violation	BNS Provision	Explanation
Rape of minor	BNS §65	Enhanced punishment
Gang rape of minor	BNS §70(2)	Severe punishment
Sexual exploitation of child	BNS §96	Abuse for sexual purposes
Child pornography (creation/distribution)	BNS §95	Digital sexual exploitation

2. Trafficking & Forced Labour of Children

Violation	BNS Provision	Explanation
Child trafficking	BNS §143(2)	Forced labour, begging, abuse
Forced begging	BNS §146	Criminal exploitation

Violation	BNS Provision	Explanation
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Sale of children	BNS §146(2)	Illegal transfer
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3. Violence, Neglect & Endangerment

Violation	BNS Provision	Explanation
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Abandonment of child	BNS §93	Desertion causing harm
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Physical abuse	BNS §115–117	Hurt & grievous hurt
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Kidnapping of child	BNS §137	From lawful guardianship
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4. Child Marriage & Early Exploitation

(Primary law remains PCMA, 2006)

Violation	BNS Role
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Child marriage	Abetment, coercion, intimidation offences
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Forced early pregnancy	Hurt, sexual offences, trafficking provisions
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III. CONSTITUTIONAL LINKAGE (IMPORTANT FOR HR WORK)

- **Article 14** – Equality before law
 - **Article 15(3)** – Special protection for women & children
 - **Article 21** – Right to life, dignity, bodily integrity
 - **Article 39(f)** – Protection of children from exploitation
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IV. HOW ICHAR CAN USE THIS (PRACTICAL)

FIR & Case Documentation

- Mention **BNS section first**, then allied laws (POCSO, JJ Act, PWDVA).
- Document **human rights violation + criminal offence** together.

Women Rights Department

- Focus on **BNS §§63–85, 124–146**

- Survivors’ legal aid + compensation tracking

Child Rights Department

- Focus on **BNS §§65, 70, 93–96, 137, 143**
- Coordinate with **CWC & JJB**

One-Line Institutional Framing (BNS-Aligned)

“ICHAR documents and legally challenges violations against women and children under the Bharatiya Nyaya Sanhita, 2023, ensuring dignity, safety, and justice through rights-based enforcement.”

ANIMAL RIGHTS VIOLATIONS & GOVERNING LAWS IN INDIA

Legal foundation: In India, animal protection flows from **Article 21 (expanded)**, **Article 48A**, **Article 51A(g)** and statutory law.

I. CRUELTY & VIOLENCE AGAINST ANIMALS

Common Violations

- Beating, kicking, torturing animals
- Starving or abandoning animals
- Overloading draught animals
- Maiming, poisoning, burning animals
- Killing animals in a cruel manner
- Using animals for violent acts

Governing Laws

Law	Key Provisions
Prevention of Cruelty to Animals Act, 1960 (PCA Act)	§§11 define cruelty, penalties
Bharatiya Nyaya Sanhita, 2023 (BNS)	§§325 – Mischief by killing/maiming animals
Constitution of India	Art. 51A(g) – duty to show compassion

Law	Key Provisions
Supreme Court Judgments	<i>Nagaraja, A. Nagaraja v. Union of India</i>
 Note: BNS allows stronger criminal framing than PCA fines alone.	

II. POISONING & MASS KILLING OF ANIMALS

Violations

- Poisoning street dogs or cattle
- Mass culling without authority
- Use of toxic substances

Laws

Law	Provisions
BNS §§325	Killing animals worth value
PCA Act §11	Cruel killing
IPC (residual principles applied)	Negligent acts
Municipal & State Animal Birth Control Rules	Prohibit killing of street dogs

III. ILLEGAL TRADE, TRANSPORT & TRAFFICKING

Violations

- Illegal animal trade
- Smuggling wildlife or exotic animals
- Cruel transport without care
- Illegal slaughter

Laws

Law	Scope
Wildlife Protection Act, 1972	Hunting, trade, captive animals
PCA Act	Cruel transport

Law	Scope
Transport of Animals Rules, 1978	Welfare during transport
Customs Act, 1962	Wildlife smuggling
CITES (International)	Endangered species trade

IV. STRAY ANIMAL ABUSE & ILLEGAL CULLING

Violations

- Killing or relocating street dogs
- Forced eviction of community animals
- Beating or poisoning strays

Laws

Law	Protection
Animal Birth Control (Dogs) Rules, 2023	Sterilisation, no killing
PCA Act §11	Cruelty
SC & HC rulings	Right of community animals

🚫 *Stray dogs cannot be killed or relocated except as per law.*

V. ILLEGAL SLAUGHTER & FOOD ANIMAL ABUSE

Violations

- Slaughter outside licensed slaughterhouses
- Cruel slaughter methods
- Slaughter of prohibited animals

Laws

Law	Scope
State Animal Preservation Acts	Cow/bull slaughter bans
PCA Act	Humane slaughter

Law	Scope
FSSAI Regulations	Meat safety & hygiene
BNS §§325	Illegal killing

VI. ANIMALS USED FOR ENTERTAINMENT & LABOUR

Violations

- Circus exploitation
- Animal fights (bullfighting, cockfighting)
- Overloading carts, construction work

Laws

Law	Protection
PCA Act §§11	Prohibits cruel use
Performing Animals Rules, 2001	Registration & bans
Supreme Court judgments	Jallikattu, animal fights

VII. EXPERIMENTATION & TESTING ON ANIMALS

Violations

- Cosmetic testing on animals
- Unethical laboratory practices

Laws

Law	Scope
PCA Act §14	Regulates experiments
CPCSEA Guidelines	Mandatory ethical clearance
Drugs & Cosmetics Rules	Ban on cosmetic testing

VIII. NEGLECT, ABANDONMENT & PET ABUSE

Violations

- Abandoning pets
- Failure to provide food, water, shelter
- Tethering pets continuously

Laws

Law	Protection
PCA Act §11	Neglect & abandonment
Pet Shop Rules, 2018	Responsible ownership
Municipal by-laws	Pet welfare

IX. WILDLIFE & HABITAT DESTRUCTION

Violations

- Poaching
- Habitat destruction
- Human–wildlife conflict mismanagement

Laws

Law	Scope
Wildlife Protection Act, 1972	Absolute protection
Forest Conservation Act, 1980	Habitat protection
Environment Protection Act, 1986	Ecosystem safety

X. CONSTITUTIONAL & JUDICIAL PROTECTION

Constitutional Provisions

- **Article 48A** – Protect wildlife
- **Article 51A(g)** – Compassion for living creatures
- **Article 21** – Right to life (expanded to animals)

Landmark Judgments

- **Animal Welfare Board v. A. Nagaraja (2014)**
 - **People for Ethical Treatment of Animals v. Union of India**
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XI. HOW ICHAR CAN STRUCTURE ANIMAL RIGHTS WORK

Core Functions

1. Cruelty documentation & FIR support
 2. Legal intervention using **BNS + PCA Act**
 3. Stray animal protection & ABC monitoring
 4. Wildlife crime reporting
 5. Policy advocacy & law reform
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XII. ONE-LINE POSITIONING (FOR WEBSITE)

“ICHAR works to prevent cruelty, exploitation, and illegal killing of animals by enforcing India’s animal protection laws and constitutional duty of compassion.”

ENVIRONMENTAL VIOLATIONS & GOVERNING LAWS IN INDIA

Core principle: Environmental protection in India flows from **Article 21 (Right to Life) + Article 48A + Article 51A(g)** of the Constitution.

I. AIR POLLUTION VIOLATIONS

Common Violations

- Industrial emissions beyond prescribed limits
- Vehicular pollution
- Open burning of waste, stubble burning
- Construction dust pollution
- Operation without pollution control devices

Governing Laws

Law	Scope
Air (Prevention and Control of Pollution) Act, 1981	Emission control, consent mechanism
Environment (Protection) Act, 1986 (EPA)	Central regulatory framework
National Green Tribunal Act, 2010	Environmental adjudication
Motor Vehicles Act, 1988	Vehicular emissions
Solid Waste Management Rules, 2016	Ban on open burning

II. WATER POLLUTION VIOLATIONS

Common Violations

- Discharge of untreated industrial effluents
- Sewage dumping into rivers, lakes, sea
- Groundwater contamination
- Oil spills and chemical leaks

Governing Laws

Law	Scope
Water (Prevention and Control of Pollution) Act, 1974	Water pollution control
Environment (Protection) Act, 1986	Standards & penalties
NGT Act, 2010	Compensation & restoration
Coastal Regulation Zone (CRZ) Rules	Coastal protection

III. SOIL & LAND DEGRADATION

Common Violations

- Illegal mining
- Dumping hazardous waste on land
- Encroachment of wetlands & forests
- Agricultural chemical overuse

Governing Laws

Law	Scope
Mines and Minerals (Development & Regulation) Act, 1957	Illegal mining
Hazardous & Other Wastes Rules, 2016	Waste disposal
Wetlands (Conservation & Management) Rules, 2017	Wetland protection
Forest Conservation Act, 1980	Forest land diversion

IV. DEFORESTATION & BIODIVERSITY LOSS

Common Violations

- Illegal tree felling
- Forest land diversion without clearance
- Wildlife habitat destruction
- Poaching and biodiversity damage

Governing Laws

Law	Scope
Forest Conservation Act, 1980	Forest diversion
Wildlife Protection Act, 1972	Wildlife protection
Biological Diversity Act, 2002	Biodiversity conservation
CAMPA Act, 2016	Compensatory afforestation

V. WASTE MANAGEMENT VIOLATIONS

Common Violations

- Improper solid waste disposal
- Illegal landfills
- Plastic pollution
- E-waste dumping
- Biomedical waste mishandling

Governing Laws

Law	Scope
Solid Waste Management Rules, 2016	Municipal waste
Plastic Waste Management Rules, 2016	Plastic regulation
E-Waste Management Rules, 2016	Electronic waste
Biomedical Waste Rules, 2016	Medical waste
Construction & Demolition Waste Rules, 2016	C&D waste

VI. CLIMATE & ENERGY-RELATED VIOLATIONS

Common Violations

- Excess greenhouse gas emissions
- Non-compliance with energy efficiency norms
- Violation of environmental clearances

Governing Laws

Law	Scope
Environment (Protection) Act, 1986	Climate regulation
Energy Conservation Act, 2001	Energy efficiency
EIA Notification, 2006	Environmental clearance
NGT Act, 2010	Climate litigation

VII. INDUSTRIAL & CORPORATE ENVIRONMENTAL VIOLATIONS

Common Violations

- Operating without environmental clearance
- Non-compliance with consent conditions
- Hazardous chemical leaks (Bhopal-type disasters)
- False environmental compliance reporting

Governing Laws

Law	Scope
EPA, 1986	Compliance & penalties
Factories Act, 1948	Worker & environmental safety
Public Liability Insurance Act, 1991	Hazard compensation
Chemical Accidents Rules, 1996	Industrial disasters

VIII. COASTAL & MARINE VIOLATIONS

Common Violations

- Illegal construction in CRZ areas
- Mangrove destruction
- Marine pollution & oil spills

Governing Laws

Law	Scope
CRZ Notification	Coastal protection
EPA, 1986	Marine pollution
Merchant Shipping Act, 1958	Oil spill control

IX. ENVIRONMENTAL JUSTICE & HUMAN RIGHTS VIOLATIONS

Common Violations

- Forced displacement without rehabilitation
- Environmental racism
- Denial of clean drinking water
- Health impacts due to pollution

Governing Laws

Law	Scope
Article 21 (Constitution)	Right to clean environment
Land Acquisition Act, 2013	Rehabilitation
NGT Act, 2010	Compensation

X. KEY LEGAL PRINCIPLES APPLIED BY COURTS

- **Precautionary Principle**
 - **Polluter Pays Principle**
 - **Public Trust Doctrine**
 - **Sustainable Development**
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XI. HOW ICHAR CAN USE THIS PRACTICALLY

Environmental Rights Department

1. Violation documentation & site reports
 2. Complaints to SPCB / CPCB
 3. **NGT petitions & PILs**
 4. Community environmental awareness
 5. Policy advocacy & compliance monitoring
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XII. ONE-LINE POSITIONING (FOR WEBSITE)

“ICHR protects the right to a clean, safe, and sustainable environment by enforcing India’s environmental laws and constitutional duties.”

I. National Human Rights & Civil Liberties (India)

- **People’s Union for Civil Liberties (PUCL)** – Civil & political rights
- **People’s Union for Democratic Rights (PUDR)** – Labour & state accountability
- **Common Cause** – Governance, transparency, public interest litigation

- **Commonwealth Human Rights Initiative (CHRI – India Office)** – Police & prison reforms
- **Centre for Human Rights Studies (CHRS)**
- **Association for Protection of Civil Rights (APCR)**

Collaboration scope: fact-finding, PILs, reports, advocacy.

II. Women's Rights Organisations (India)

- **SEWA (Self-Employed Women's Association)** – Economic & labour rights
- **Majlis Legal Centre** – Legal aid for women
- **Jagori** – Gender justice & safety
- **AIDWA (All India Democratic Women's Association)**
- **Breakthrough India** – Gender-based violence prevention
- **Lawyers Collective – Women's Rights Initiative**

Scope: legal aid, policy advocacy, gender justice campaigns.

III. Child Rights Organisations (India)

- **Bachpan Bachao Andolan (BBA)** – Child labour & trafficking
- **Childline India Foundation** – Child protection & rescue
- **HAQ: Centre for Child Rights** – Research & policy
- **CRY (Child Rights and You)**
- **Save the Children India**
- **Prayas Juvenile Aid Centre**

Scope: child protection, rehabilitation, legal reform.

IV. Animal Rights & Welfare Organisations (India)

- **People For Animals (PFA)**
- **Blue Cross of India**
- **Compassion Unlimited Plus Action (CUPA)**

- **Federation of Indian Animal Protection Organisations (FIAPO)**
- **Humane Society India (HSI India)**
- **Animal Welfare Board of India (AWBI)** (*statutory body*)

Scope: cruelty prevention, policy advocacy, rescue, legal enforcement.

V. Environmental & Climate Justice Organisations (India)

- **Centre for Science and Environment (CSE)**
- **Kalpavriksh** – Biodiversity & rights of indigenous communities
- **Environment Support Group (ESG), Bengaluru**
- **Vasudha Foundation** – Climate policy & justice
- **National Alliance of People's Movements (NAPM)**
- **Goa Foundation** – Environmental litigation

Scope: environmental justice, displacement, right to livelihood.

VI. Legal Aid, PIL & Access to Justice (India)

- **Legal Services Authorities (NALSA / State DLSAs)** (*institutional*)
- **Alternative Law Forum (ALF)**
- **Human Rights Law Network (HRLN)**
- **Justice Ventures International (India)**
- **iProbono India**

Scope: litigation support, legal clinics, strategic cases.

VII. Dalit, Tribal & Minority Rights (India)

- **National Campaign on Dalit Human Rights (NCDHR)**
- **Navsarjan Trust** – Dalit rights
- **Adivasi Rights Organisations (various regional alliances)**
- **Minority Rights Group India (network-based)**

Scope: discrimination, access to justice, constitutional rights.

VIII. Disability Rights Organisations (India)

- National Centre for Promotion of Employment for Disabled People (NCPEDP)
- Disability Rights India Foundation (DRIF)
- Vidya Sagar
- Enable India

Scope: inclusion, accessibility, rights-based advocacy.

IX. Research, Policy & Academic Collaborators (India)

- TISS – School of Social Work / Centre for Human Rights
- Jindal Global Law School – Centre for Human Rights Studies
- Indian Law Institute (ILI)
- Centre for Policy Research (CPR)

Scope: research, policy papers, evidence-based advocacy.

X. Government & Statutory Bodies (Engagement, not NGO)

- National Human Rights Commission (NHRC)
 - National Commission for Women (NCW)
 - National Commission for Protection of Child Rights (NCPCR)
 - State Human Rights Commissions
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Strategic Tip for ICHAR (India)

Because ICHAR covers **human + animal rights**, position yourselves as:

“A convergence platform enabling collaboration between human rights, animal welfare, and environmental justice organisations in India.”

MEMORANDUM OF UNDERSTANDING (MoU)

This Memorandum of Understanding ("MoU") is executed on this ____ day of _____ 20__,

BETWEEN

International Council for Human and Animal Rights (ICHAR),
a **Section 8 Company incorporated under the Companies Act, 2013,**
bearing CIN: _____,
having its registered office at _____, India,
hereinafter referred to as "**ICHAR**",
(which expression shall, unless repugnant to the context, include its successors and permitted assigns)

AND

_____,
a _____ (Section 8 Company / Trust / Society / NGO / CSR Entity),
registered under _____,
having its registered office at _____,
hereinafter referred to as "**the Partner Organisation**",
(which expression shall, unless repugnant to the context, include its successors and permitted assigns)

ICHAR and the Partner Organisation are hereinafter individually referred to as a "**Party**" and collectively as the "**Parties.**"

1. OBJECTIVE AND PURPOSE

The objective of this MoU is to establish a framework for **mutual cooperation and collaboration** in furtherance of charitable and non-profit objectives as permitted under **Section 8 of the Companies Act, 2013**, including but not limited to:

- Promotion and protection of **human rights**
- Protection and welfare of **animals**
- Environmental conservation and sustainability
- Social justice, peace, compassion, and ethical governance
- Capacity building, advocacy, and awareness programs

This MoU is executed strictly for **non-commercial and charitable purposes.**

2. SCOPE OF COLLABORATION

The Parties may jointly or independently collaborate in the following areas:

1. Human rights advocacy, legal awareness, and policy interventions
2. Animal welfare, rescue, rehabilitation, and cruelty prevention
3. Women, child, elderly, and vulnerable group rights protection
4. Environmental protection, climate action, and sustainability initiatives
5. Research, documentation, and publication of reports
6. Training programs, workshops, seminars, and conferences
7. Community development and grassroots outreach programs

The scope of each project may be detailed through **separate project annexures or work orders**, if required.

3. ROLES AND RESPONSIBILITIES

3.1 ICHAR shall:

- Provide strategic guidance, advocacy support, and coordination
- Ensure compliance with applicable laws, including the Companies Act, 2013
- Assist in rights-based legal, policy, or research interventions
- Facilitate national and international cooperation, where applicable

3.2 Partner Organisation shall:

- Support program implementation and field-level execution
 - Provide technical, operational, or local expertise as mutually agreed
 - Adhere to ethical standards and statutory compliance requirements
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4. COMPLIANCE WITH LAWS

Both Parties agree to:

- Comply with all applicable **Indian laws**, rules, and regulations
- Ensure adherence to:

- Companies Act, 2013 (for Section 8 entities)
 - Income Tax Act, 1961
 - CSR Rules, 2014 (if applicable)
 - FCRA, 2010 (if foreign contribution is involved)
 - Not engage in any activity that violates public policy or statutory provisions
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5. FINANCIAL ARRANGEMENTS

- This MoU does **not create any automatic financial obligation** on either Party.
 - Any funding, donations, CSR support, or cost-sharing shall be governed by:
 - Separate written agreements, and
 - Applicable statutory approvals and compliances
 - Funds, if any, shall be used strictly for **charitable purposes** and not for profit distribution.
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6. CSR ALIGNMENT (IF APPLICABLE)

Where applicable, activities under this MoU may align with **Schedule VII of the Companies Act, 2013**, including:

- Promotion of education, gender equality, and animal welfare
 - Environmental sustainability
 - Protection of national heritage, art, and culture
 - Rural development projects
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7. INTELLECTUAL PROPERTY & BRAND USAGE

- Intellectual property created jointly shall be jointly owned unless agreed otherwise in writing.
- Neither Party shall use the **name, logo, or trademarks** of the other Party without prior written consent.
- All public communications shall maintain dignity, neutrality, and statutory compliance.

8. CONFIDENTIALITY

Both Parties agree to maintain confidentiality of all non-public, sensitive, or proprietary information exchanged during the course of collaboration, except where disclosure is required by law.

9. NON-EXCLUSIVITY

This MoU is **non-exclusive**, and either Party may collaborate with other organisations for similar objectives.

10. DURATION AND TERMINATION

- This MoU shall be valid for a period of ____ **years** from the date of execution.
 - Either Party may terminate this MoU by providing **30 (thirty) days' written notice**.
 - Termination shall not affect obligations already accrued or projects already undertaken unless mutually agreed.
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11. LEGAL NATURE

- This MoU does **not constitute a partnership, joint venture, or agency**.
 - Neither Party shall have authority to bind the other legally or financially.
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12. GOVERNING LAW AND JURISDICTION

- This MoU shall be governed by and construed in accordance with the **laws of India**.
 - Courts at _____ **(City/State)** shall have exclusive jurisdiction.
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13. AMENDMENT

Any amendment or modification to this MoU shall be valid only if made **in writing** and signed by authorized representatives of both Parties.

14. ENTIRE UNDERSTANDING

This MoU constitutes the entire understanding between the Parties and supersedes all prior communications, oral or written.

15. SIGNATURES

IN WITNESS WHEREOF, the Parties have executed this MoU on the date first written above.

For International Council for Human and Animal Rights (ICHAR)

Name: _____

Designation: _____

DIN / Authorized Signatory

Signature: _____

Date: _____

For Partner Organisation

Name: _____

Designation: _____

Authorized Signatory

Signature: _____

Date: _____